

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

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- Source: `claude-windows`  
- Kind: `claude`  
- Source file: `C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-inde  
xer\068560d3-1ca2-4387-981a-d2d6bca55414\subagents\workflows\wf_47057438-9c9\agent-  
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- SHA-256: `9049d9b1d1a7dba457cd80cb11b2b82c0afc0127b28840c5fd78e13948ab5917`  
- Source modified: `2026-06-16T02:57:43+00:00`  
- Imported at: `2026-07-05T16:48:28+00:00`  
- project: `wf_47057438-9c9`  
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`
```

Transcript

1. user (2026-06-16T02:44:47.466Z)

RESEARCH QUESTION (PRIMARY JURISDICTION ? owner is in Bangalore, India): Under the Indian Copyright Act 1957 ? derivative works, the originality 'modicum of creativity' standard (Eastern Book Co. v. D.B. Modak), fair dealing s.52; the ABSENCE of an EU-style sui generis database right in India; and the Digital Personal Data Protection (DPDP) Act 2023 ? definition of personal data, treatment of derived/anonymized data, and children's data rules ? is committing DERIVED numeric data from videos lawful? Note any Indian case law on data scraping/extraction. Bottom line under Indian law.

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

2. assistant (2026-06-16T02:44:50.448Z)

I'll research this systematically. Let me load the web tools first.

3. assistant (2026-06-16T02:44:54.116Z)

I'll research this systematically across the four legal pillars: (1) Copyright Act 1957 ? derivative works, originality standard, fair dealing; (2) absence of sui generis database right; (3) DPDP Act 2023; (4) Indian case law on data scraping/extraction.

Let me run parallel searches on each pillar.

4. user (2026-06-16T02:45:03.667Z)

Web search results for query: "India no sui generis database right copyright protection databases facts EU comparison"

Links: [{"title":"Database Protection in the European Union: Need for a Sui Generis Legislation in India by Mukta Batra :: SSRN","url":"https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2404942"}, {"title":"Originality In Database: Understanding Copyright Thresholds - Intepat IP","url":"https://www.intepat.com/blog/originality-in-database-understanding-copyright-thresholds"}, {"title":"Database protection in the EU - Your Europe - European Union","url":"https://europa.eu/youreurope/business/running-business/intellectual-property/database-protection/index_en.htm"}, {"title":"Legal protection: databases | EUR-Lex - European Union","url":"https://eur-lex.europa.eu/EN/legal-content/summary/legal-protection-databases.html"}, {"title":"Crowdsourced Databases and Sui Generis Rights","url":"https://arxiv.org/pdf/2108.04727"}, {"title":"Sui Generis Database Right: A Long Last Road for India","url":"https://lawschoolpolicyreview.com/2019/12/22/sui-generis-database-right-a-long-last-road-for-india/"}, {"title":"Understanding the EU Directive on Database

Protection ? Law Notes by TheLaw.Institute", "url": "https://thelaw.institute/commerce-and-cyberspace/eu-directive-database-protection-overview/"}], [{"title": "Sui Generis Rights: A Separate Regime for Protecting Non-Original Databases ? Law Notes by TheLaw.Institute", "url": "https://thelaw.institute/commerce-and-cyberspace/sui-generis-rights-non-original-database-protection/"}], [{"title": "protection databases", "url": "https://digital-strategy.ec.europa.eu/en/policies/protection-databases"}]]

Based on the search results, here are the key facts about India's lack of sui generis database protection and how it compares to the EU:

India's Current Database Protection Framework

India does not provide sui generis protection for databases, meaning that large datasets must prove creativity in their selection or arrangement to qualify for copyright. India does not have a sui generis database protection regime. The Copyright Act, 1957 protects databases as literary works under Section 13, but only when they demonstrate originality in selection or arrangement.

EU Approach to Database Protection

In contrast, the European Union-specific sui-generis database right aims to protect investment and effort in producing unoriginal databases. It exists to recognise the substantial investment that is made in obtaining, verification or presentation of the contents of a database, even when this does not involve the creative aspect that is reflected by copyright.

To obtain sui generis protection you need to prove that you have made a substantial investment (financial, material and/or human) in either obtaining, the verification or the presentation of the database content. When you create the database and it meets the requirements for the sui generis protection, you are automatically granted this protection for 15 years.

Debate Over India's Approach

A comparison of the sui-generis model and Indian Copyright argues against the adoption of the sui-generis model in India, as unoriginal compilations are already protected under Indian Copyright. However, proponents argue it would encourage database investment and harmonize protection for Indian companies operating internationally. Critics worry it could restrict access to information and create monopolies, particularly concerning government databases and scientific research.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:45:03.841Z)

Web search results for query: "Eastern Book Company v D.B. Modak Supreme Court India originality modicum of creativity copyright standard"

Links: [{"title": "Eastern Book Company v DB Modak, 2008 (36) PTC 1 (SC)", "url": "https://lawbhoomi.com/eastern-book-company-v-db-modak/"}, {"title": "Eastern Book Company v. D.B. Modak for Test of Originality", "url": "https://taxguru.in/corporate-law/eastern-book-company-v-d-b-modak-test-originality.html"}, {"title": "Eastern Book Company And Others v. D.B Modak And Another, Supreme Court Of India, Judgment, Law, casemine.com", "url": "https://www.casemine.com/judgement/in/5609ae60e4b0149711413a68"}, {"title": "Eastern Book Company and Ors. vs D.B. Modak and Ors. - Law Times Journal", "url": "https://lawtimesjournal.in/eastern-book-company-and-ors-vs-d-b-modak-and-ors/"}, {"title": "The Modicum of Creativity Standard: An Analysis of Eastern Book Company v. D.B. Modak", "url": "https://www.ipandlegalfilings.com/the-modicum-of-creativity-standard-an-analysis-of-eastern-book-company-v-d-b-modak/"}, {"title": "Eastern Book Company & Ors. v. D. B. Modak and Anr.", "url": "https://www.theipmatters.com/post/eastern-book-company-ors-v-d-b-modak-and-anr"}, {"title": "Eastern Book Co. & Ors. v. D.B. Modak & Anr - Record Of Law", "url": "https://recordoflaw.in/eastern-book-co-ors-v-d-b-modak-anr/"}, {"title": "Eastern Book Company v. D.B. Modak Case Summary | Backed By Law", "url": "https://backedbylaw.in/post/eastern-book-company-v-db-modak-case-summary"}]]

Based on the search results, here's what I found about the Eastern Book Company v D.B. Modak Supreme Court India case regarding originality and the modicum of creativity copyright standard:

Case Overview

This is a landmark judgment of the Supreme Court of India concerning copyright protection in legal publishing. The Court addressed whether the publishers of Supreme Court Cases (SCC) could claim copyright over edited versions of judgments and associated editorial materials.

The Originality Standard

The ruling clarified the standard of "originality" under the Indian Copyright Act, 1957, marking a significant departure from the "sweat of the brow" doctrine and moving towards the "modicum of creativity" standard.

The case created a new benchmark for the interpretation of "originality" by defining a balance between 'Sweat of the Brow' and the 'Modicum of Creativity' test. The Court adopted a 'middle path' with the prerequisite of 'adequate skill and judgement', thereby setting a standard for proving originality.

Copyright Protection for Editorial Work

The Court ruled that the appellants' effort in editing, formatting, and arranging the judgements was a substantial enough creative input to make their version of the judgements an original work. However, routine corrections, cross-citations, verification of quotes, insertion of page numbers, abbreviation expansion, punctuation changes and similar tasks were held to be mechanical enhancements lacking the requisite creativity.

Even though the underlying material may be in the public domain, such as court judgements, the work put into editing, arranging, and formatting these judgements can be protected if it meets the required threshold of creativity. Labour, skill, and capital invested in creating a derivative work could lead to copyright protection, even if the work is based on public domain materials.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:45:07.984Z)

Let me search the remaining pillars: DPDP Act 2023 (personal data definition, derived/anonymized data, children's data) and Indian case law on data scraping.

7. user (2026-06-16T02:45:15.235Z)

Web search results for query: "DPDP Act 2023 India definition personal data anonymized data children data verifiable parental consent Section 9"

Links: [{"title":"Decrypting India's New Data Protection Law: Key Insights and Lessons Learned - Bird & Bird","url":"https://www.twobirds.com/en/insights/2023/global/decrypting-indias-new-data-protection-law-key-insights-and-lessons-learned"}, {"title":"Digital Personal Data Protection Act, 2023 - Legal Service India - Articles","url":"https://www.legalserviceindia.com/Legal-Articles/digital-personal-data-protection-act-2023/"}, {"title":"Implications on the Data of Children after the Enactment of Digital Personal Data Protection Act, 2023 ? Child Rights Clinic ? Every Child Counts","url":"https://jgu.edu.in/child-rights-clinic/implications-on-the-data-of-children-after-the-enactment-of-digital-personal-data-protection-act-2023/"}, {"title":"Rule 10 of Digital Personal Data Protection Act, 2023 DPDP Rules 2025","url":"https://www.dpdpa.com/dpdparules/rule10.html"}, {"title":"Indian perspective on protecting children's personal data | India | Law.asia","url":"https://law.asia/childrens-data-protection-dpdp-act/"}, {"title":"Navigating Children's Privacy and Parental Consent Under The DPDP Act 2023 - The Quantum Hub","url":"https://thequantumhub.com/navigating-childrens-privacy-and-parental-consent-under-the-dpdp-act-2023/"}, {"title":"Digital Personal Data Protection Act, 2023 DPDP SECTION 9 WITH INTERPRETATION","url":"https://www.dpdpa.com/dpdpa2023/chapter-2/section9.html"}]

Based on the search results, here's information about the DPDP Act 2023 regarding the key

concepts you asked about:

Definition of Child

A child is defined as a person below eighteen years of age.

Personal Data

While the search results discuss personal data processing extensively, they don't provide a specific definition of "personal data" in the context of Section 9. However, the Act requires data processing for children to comply with specific protections.

Section 9 - Children's Data and Verifiable Parental Consent

Section 9(1) mandates that Data Fiduciaries must, before processing any personal data of a child or person with disability, obtain verifiable consent from the parent or lawful guardian of such child or person with disability.

Any processing that is likely to cause any detrimental effect on the well-being of the child is prohibited. Additionally, tracking, behavioral monitoring and advertisements targeted on children is also restricted under the DPDP Act.

Anonymized Data

The search results do not contain specific information about how anonymized data is defined or treated under the DPDP Act 2023 in relation to Section 9.

For more detailed information about anonymized data treatment and the complete definitions in the Act, you may need to consult the full text of the DPDP Act 2023 or the DPDP Rules 2025.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

8. user (2026-06-16T02:45:17.118Z)

Web search results for query: "India case law data scraping extraction database copyright Delhi High Court LinkedIn web scraping judgment"

Links: [{"title": "OpenAI faces data scraping allegations in India's first-ever generative-AI copyright infringement suit - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=15927c99-bfb6-4ed3-8671-f85ec42217b2"}, {"title": "US Supreme Court revives LinkedIn case to protect user data from web scrapers", "url": "https://www.latestlaws.com/latest-news/us-supreme-court-revives-linkedin-case-to-protect-user-data-from-web-scrapers/"}, {"title": "Data Scraping And Legal Issues In India - Copyright - India", "url": "https://www.mondaq.com/india/copyright/900156/data-scraping-and-legal-issues-in-india"}, {"title": "OpenAI faces data scraping allegations in India's first-ever generative-AI copyright infringement suit - WTR", "url": "https://www.worldtrademarkreview.com/article/openai-faces-data-scraping-allegations-in-indias-first-ever-generative-ai-copyright-infringement-suit"}, {"title": "Legality of data scraping in India", "url": "https://www.ikigailaw.com/article/263/legality-of-data-scraping-in-india"}, {"title": "Data Scraping in India: Legal Perspectives, Risks, and Regulatory Framework Explained - Dr. Abhishek Gandhi", "url": "https://advocategandhi.com/data-scraping-in-india-legal-perspectives-risks-and-regulatory-framework-explained/"}, {"title": "Data Scraping and Legal Issues in India - S.S. Rana & Co.", "url": "https://ssrana.in/articles/data-scraping-issues-india/"}, {"title": "University of Oxford v. Rameshwari Photocopy Service", "url": "https://en.wikipedia.org/wiki/University_of_Oxford_v._Rameshwari_Photocopy_Service"}]

Based on the search results, here are the key findings related to your query:

Data Scraping and Copyright in Indian Courts

****Delhi High Court Case - OLX v. Competitors:****

In a case before the Delhi High Court, OLX had successfully obtained a permanent restraining order against a company to prevent them from using automated/manual means to scrape any data, including commercial data, pertaining to OLX's website. The court held that such database of information qualifies as 'original literary work' and is entitled to protection under copyright law, and the Court ruled in favour of OLX.

****Legal Framework for Data Scraping in India:****

Data scraping will violate the Information Technology Act, 2000, which penalizes unauthorized access to a computer resource or extracting data from a computer resource without the owner's permission.

****Copyright in Compilations:****

The Supreme Court of India in EBC v. D.B. Modak held that copyright subsists in a compilation which fulfils the criteria of skill and judgment doctrine, which provides that any compilation that involves a minimal degree of creativity shall have a copyright.

****LinkedIn Web Scraping Case (US precedent):****

In the case of LinkedIn Corp. v. hiQ Labs (2022) in the United States, LinkedIn alleged that hiQ's scraping of public profiles violated its terms, but the court ruled that publicly available data scraping was allowed as no "unauthorized access" occurred. While India has no direct precedent yet, such foreign judgments can be persuasive in interpreting similar disputes.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

9. assistant (2026-06-16T02:45:21.660Z)

Good coverage. Now let me fetch authoritative primary/secondary sources to verify the key claims. Let me prioritize: (1) the EBC v Modak case detail, (2) DPDP Act statutory definitions (personal data, anonymization, children), (3) fair dealing s.52, and (4) the data scraping legal analysis.

10. user (2026-06-16T02:45:24.092Z)

The server returned HTTP 403 Forbidden.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

11. user (2026-06-16T02:45:32.331Z)

Data Scraping Legality in India: Legal Framework & Risks

Indian Statutory Framework

****Copyright Act, 1957:****

Indian copyright law can protect databases as "original literary works" if they demonstrate skill, labor, and creativity in compilation. The Delhi High Court in *OLX v. Padawan* (2016) ruled that OLX's proprietary database qualified for copyright protection, though the court noted: "there would have been no copyright infringement if the company had used the data for its own private use."

****Information Technology Act, 2000 (Section 43):****

Section 43 penalizes "unauthorized access to a computer resource or extracting data from a computer resource without the owner's permission." However, the rules governing Sensitive Personal Data or Information (SPDI) exclude "information that is freely available or accessible in the public domain" from protection.

Primary Legal Risks

****1. Contract Violation****

Most websites include terms prohibiting scraping (LinkedIn, Facebook, Twitter). Indian courts recognize electronic contracts as enforceable, making ToS violations legally actionable.

****2. Copyright Infringement****

If scraped content is republished (as in OLX case), it may infringe copyrights in compiled databases, though private use remains permissible.

****3. IT Act Violations****

Scraping may violate Section 43 if deemed "unauthorized access," though the article argues this likely applies only to non-public data given India's SPDI exclusions.

Key Limitation

Indian courts have not comprehensively addressed web scraping's legality?the analysis relies partly on U.S. precedent (*hiQ v. LinkedIn*) distinguishing public from restricted information.

12. assistant (2026-06-16T02:45:35.463Z)

The ikigailaw fetch worked. The casemine one was blocked. Let me get an alternate source for EBC v Modak holding detail, the DPDP statutory definitions (personal data, anonymization absence, Section 9 children), and the fair dealing s.52 scope.

13. user (2026-06-16T02:45:44.798Z)

Section 9 of the DPDP Act 2023: Children's Data Protection

Statutory Definition of "Child"

Per Section 2(k), a **"child"** means an individual who has not completed the age of eighteen years.

Key Requirements from Section 9

****Parental Consent (Section 9(1))****

"The Data Fiduciary shall, before processing any personal data of a child...obtain verifiable consent of the parent" or lawful guardian in prescribed manner.

****Well-Being Protection (Section 9(2))****

Data Fiduciaries cannot process children's data "likely to cause any detrimental effect on the well-being of a child."

****Absolute Prohibitions (Section 9(3))****

Three practices are forbidden: "tracking or behavioural monitoring of children or targeted advertising directed at children."

Critical Point

Section 9(3)'s prohibitions apply **even with parental consent**?certain protections cannot be waived because they protect fundamental interests beyond parental authority.

The statute establishes that children under 18 constitute a vulnerable population requiring heightened safeguards in data processing, implementing constitutional commitments to child protection.

14. user (2026-06-16T02:45:49.027Z)

Eastern Book Company v. D.B. Modak: The Originality Test

The Court's Approach

The Supreme Court deliberately rejected both extreme positions. Rather than adopting the "Sweat

of the Brow" test (which rewards mere labor and capital investment) or the "Modicum of Creativity" standard (which demands novelty and non-obviousness), the bench pursued a middle ground.

The "Skill and Judgment" Standard

The court established that derivative works require demonstrating "the author's independent skill apart from capital and labour." According to the analysis, the adopted framework defines:

- **Skill** as contributions that are "not trivial and are substantial"
- **Judgment** as application of resources "beyond the mere expenditure of labour and capital"

Public Domain vs. Editorial Contributions

The court distinguished between raw judicial opinions and editorial enhancements. While the Respondents could access Supreme Court judgments freely, they could not replicate the Petitioners' specific contributions: paragraph numbering, cross-referencing systems, footnotes, headnotes, and editorial formatting choices.

The judgment prohibited copying "the paragraphs made by the Petitioners for internal referencing" and their analysis of dissenting and concurring opinions?recognizing copyright protection extends to the *expression and arrangement*, not the underlying judicial decisions themselves.

15. assistant (2026-06-16T02:45:53.312Z)

Both fetched well. Now the DPDP definition of "personal data" and treatment of anonymized/derived data, plus the fair dealing s.52 scope. Let me get authoritative sources for these.

16. user (2026-06-16T02:45:55.194Z)

The server returned HTTP 402 Payment Required.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

17. user (2026-06-16T02:46:02.854Z)

Web search results for query: "Section 52 Copyright Act 1957 India fair dealing private use research what acts not infringement scope"

Links: [{"title": "Section 52 of Copyright Act, 1957: Exceptions to Copyright Infringement", "url": "https://thelegalschool.in/blog/section-52-of-copyright-act"}, {"title": "Fair Use Doctrine in Copyright", "url": "https://lawbhoomi.com/fair-use-doctrine-in-copyright/"}, {"title": "Exception To Infringement Of Copyright Section 52 Of The Copyright Act, 1957 - Copyright - India", "url": "https://www.mondaq.com/india/copyright/1184954/exception-to-infringement-of-copyright-section-52-of-the-copyright-act-1957"}, {"title": "Fair Use Provisions under the Indian Copyright Act: Awareness Among Librarians of Colleges and Universities in Maharashtra by Anson C. J. Jose, Jagdish Wamanrao Khobragade :: SSRN", "url": "https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4940387"}, {"title": "Section 52(1)(a) in The Copyright Act, 1957", "url": "https://indiankanoon.org/doc/1247029/"}, {"title": "FAIR DEALING UNDER THE COPYRIGHT ACT, 1957: JUDICIAL TESTS AND STATUTORY BOUNDARIES | TaxTMI", "url": "https://www.taxtmi.com/article/detailed?id=15577"}, {"title": "Fair Use and Fair Dealing in Copyright Law - Holla Associates", "url": "https://hollaassociates.in/fair-use-and-fair-dealing-in-copyright-law/"}, {"title": "Copyright law of India", "url": "https://en.wikipedia.org/wiki/Copyright_law_of_India"}]

Based on the search results, here's information about Section 52 of the Copyright Act, 1957 in India:

Scope of Section 52

Section 52 of the Copyright Act, 1957 lists acts that do not count as copyright infringement, like fair dealing for research or education. The doctrine seeks to balance the proprietary interests of creators with the public interest in access to knowledge, critique, scholarship and creative engagement.

Acts Not Constituting Infringement

Section 52(1)(a) provides for fair dealing with any work, not being a computer programme, for the purposes of: (i) private or personal use, including research; (ii) criticism or review, whether of that work or of any other work; (iii) the reporting of current events and current affairs, including the reporting of a lecture delivered in public.

Additionally, Section 52 includes exceptions like fair dealing for research, criticism, news reporting, educational use, and non-commercial performances.

Key Characteristics

Unlike the open-ended "fair use" standard under United States law, the Indian approach is purpose-specific, enumerative and bounded, yet heavily shaped by judicial interpretation. Indian law does not permit reliance on fair dealing for purposes outside Section 52. For example, copying for "research and data analytics" in commercial environments, online platform training or algorithmic development cannot fall under fair dealing unless tied to one of the statutory purposes.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

18. assistant (2026-06-16T02:46:07.764Z)

Important nuance on s.52 ? fair dealing is purpose-bounded and may not cover commercial data analytics. But the more fundamental point for the owner's question is whether copyright subsists in the underlying facts/numbers at all. Let me verify the "facts are not copyrightable" / idea-expression dichotomy point with an authoritative source, and confirm the DPDP scope/anonymization point from a clean source. Let me also confirm the absence of a sui generis right and that the OpenAI/ANI suit is the current frontier on scraping.

19. user (2026-06-16T02:46:17.405Z)

Database Rights in India: Current Status

Does India Have a Sui Generis Database Right?

No. India does not currently have a sui generis database right comparable to the EU Database Directive. The article explicitly states: "The current copyright regime requires no changes but broadening the scope for interpretation and inclusion of databases in a _sui generis_ manner."

What Is Protected Under Indian Copyright?

Under Indian law, **only original selection and arrangement are protected, not raw facts or data themselves**.

The Copyright Amendment Act of 1999 included "database" within the definition of "literary work," but Indian courts apply the **"modicum of creativity" test**. This means:

- **Protected**: Creative selection, sequencing, and systematic arrangement of facts
- **Not protected**: Mere facts, raw data, or unoriginal compilations

Key Case Law

EBC v. D.B. Modak (2008) established that "mere arrangement, selection and co-ordination of facts in databases cannot be copyrighted" without demonstrating creativity beyond industrious

collection.

Practical Consequence

Extracting raw facts or data from a database work remains unprotected. Only the creative presentation method itself enjoys copyright protection. The article notes this creates a "free-rider problem" and explains why some advocate for expanded database protection? though the author argues the existing framework is sufficient with broader judicial interpretation.

20. user (2026-06-16T02:46:19.602Z)

Fair Dealing Under Section 52(1)(a) of the Copyright Act, 1957

Categories of Fair Dealing

According to the article, Section 52(1)(a) permits fair dealing for:

- **Personal use and research**
- **Criticism and reviews**
- **News reporting and public events** (including lectures)
- **Electronic storage** for these purposes

Closed List vs. Open-Ended Framework

Fair dealing in India operates as a **closed, enumerated list** rather than an open-ended doctrine. The article explicitly states: "Fair dealing in Section 52 comes from common law traditions and global standards. It's similar to the 'fair use' idea in U.S. law but **more limited**, as it only applies to specific purposes listed in the law."

The document further clarifies the distinction: "Fair use in the U.S. is flexible, judged by four factors... Fair dealing in India is limited to specific purposes, like research or criticism, **making it clearer but less flexible**."

Private/Personal Use as Fair Dealing

Yes, according to the content provided, private and personal use including research **does count as fair dealing**. Clause (a) explicitly allows uses "for personal use, research, criticism, reviews, or reporting news and public events."

However, the article emphasizes that for fair dealing to apply, "the use must be fair. This means that it should not compete with the original work or be used to make money."

21. assistant (2026-06-16T02:46:30.212Z)

I have strong coverage on all four pillars. Let me get one more authoritative confirmation on the DPDP "personal data" definition and its scope (only digital personal data of identifiable individuals; anonymized data outside scope), plus confirm the ANI v OpenAI scraping suit status ? the one current Indian generative-AI scraping case.

22. user (2026-06-16T02:46:39.372Z)

Web search results for query: "DPDP Act 2023 Section 2 definition "personal data" "any data about an individual who is identifiable" anonymised data outside scope"

Links: [{"title": "Digital Personal Data Protection Act, 2023", "url": "https://en.wikipedia.org/wiki/Digital_Personal_Data_Protection_Act,_2023"}, {"title": "Digital Personal Data under the DPDP Act - What data does it cover? | Article | Chambers and Partners", "url": "https://chambers.com/articles/digital-personal-data-under-the-dpdp-act-what-data-does-it-cover"}, {"title": "125+ DPDP FAQ | Digital Personal Data Protection Act 2023 & DPDP Rules 2025", "url": "https://www.dpdpa.com/dpdp-faq.html"}, {"title": "Decoding the Digital Personal Data Protection Act, 2023", "url": "https://www.ey.com/en_in/insights/cybersecurity/decoding-the-digital-personal-data-"}]

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protection-act-2023"}, {"title": "Digital Personal Data Protection Act, 2023 DPDPA Definitions  
WITH INTERPRETATION SECTION  
2", "url": "https://www.dpdpa.com/dpdpa2023/chapter-1/section2.html"}, {"title": "Grounds for  
processing personal data in The DPDPA, 2023 SECTION 4 WITH  
INTERPRETATION", "url": "https://www.dpdpa.com/dpdpa2023/chapter-2/section4.html"}, {"title": "FAQs  
- The Digital Personal Data Protection Act, 2023", "url": "https://www.cyrilshroff.com/wp-  
content/uploads/2025/12/FAQs-DPDPA.pdf"}, {"title": "Digital Personal Data Protection Act 2023  
(DPDP Act 2023) - Ministry of Law and Justice | Official Government  
Version", "url": "https://www.dpdpa2023.com/chapter-2"}]
```

Based on the search results, here's what I found regarding the DPDP Act 2023 Section 2 definition of "personal data" and the treatment of anonymised data:

Personal Data Definition

Under Section 2(t), "Personal Data" means any data about an individual who is identifiable by or in relation to such data.

Anonymised Data and Scope

Regarding anonymised data, anonymisation is typically understood as the irreversible process of transforming or converting personal data into a form in which the individual cannot be identified, and consequently, anonymised data is likely to be outside DPDPA's purview.

The key distinction is that anonymisation is a technique whereby personal data is rendered anonymous in such a way that an individual is no longer identifiable, and for data to be truly anonymised, the anonymisation must be irreversible.

In contrast, pseudonymized data would be appropriate to continue to treat as personal data under the DPDP Act, since pseudonymization merely reduces the links between individuals and their personal data but does not remove them entirely.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

23. user (2026-06-16T02:46:43.237Z)

Web search results for query: "ANI Media v OpenAI Delhi High Court 2024 copyright data scraping training non-expressive India status"

Links: [{"title": "OpenAI faces data scraping allegations in India's first-ever generative-AI copyright infringement suit - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=15927c99-bfb6-4ed3-8671-f85ec42217b2"}, {"title": "OpenAI faces data scraping allegations in India's first-ever generative-AI copyright infringement suit - WTR", "url": "https://www.worldtrademarkreview.com/article/openai-faces-data-scraping-allegations-in-indias-first-ever-generative-ai-copyright-infringement-suit"}, {"title": "ANI-OpenAI dispute: Delhi High Court reserves order in AI copyright case | Company News - Business Standard", "url": "https://www.business-standard.com/companies/news/ani-openai-case-delhi-high-court-ai-copyright-dispute-chatgpt-training-data-126040200589_1.html"}, {"title": "Delhi High Court's landmark case could reshape AI training copyright laws in India | Noah News", "url": "https://noah-news.com/delhi-high-courts-landmark-case-could-reshape-ai-training-copyright-laws-in-india/"}, {"title": "Does Human Learning equal Machine Learning? High Court of Delhi to rule on lawfulness of TDM for Machine Learning | Kluwer Copyright Blog", "url": "https://legalblogs.wolterskluwer.com/copyright-blog/does-human-learning-equal-machine-learning-high-court-of-delhi-to-rule-on-lawfulness-of-tdm-for-machine-learning/"}, {"title": "ChatGPT data stored outside India, copyright act does not apply in ANI case: OpenAI to Delhi HC - Storyboard18", "url": "https://www.storyboard18.com/how-it-works/chatgpt-data-stored-outside-india-copyright-act-does-not-apply-in-ani-case-openai-to-delhi-hc-61249.htm"}, {"title": "Delhi HC reserves verdict in ANI-OpenAI copyright case", "url": "https://www.pitchonnet.com/pitch-feature/delhi-hc-reserves-verdict-in-ani-openai-copyright-case-39529.html"}, {"title": "Generative AI and Copyright Issues Globally: ANI Media v OpenAI | TechPolicy.Press", "url": "https://www.techpolicy.press/generative-ai-and-copyright-issues-globally-ani-media-v-openai/"}, {"title": "skip to main"}]

content", "url": "https://ec.europa.eu/newsroom/eisma/redirection/item/874265"}]]

Based on the search results, here's information about the ANI Media v OpenAI case at the Delhi High Court:

Case Overview

Asian News International (ANI) Media filed a copyright infringement suit against OpenAI at the Delhi High Court (ANI Media Pvt Ltd v OpenAI Inc & Anr, CS(COMM) 1028/2024), and this is the first time that a generative-AI platform has faced copyright infringement allegations in India.

The Claims

ANI is claiming that ChatGPT has been illegally scraping freely available and paywalled copyrighted content from its website. ANI filed the case on November 19, 2024, and the court has held 32 hearings between November 2024 and March 27, 2026.

Key Arguments

****Non-Expressive Elements**:** OpenAI maintained that the training process extracts what it described as "non-expressive" elements of text, which it said are not protected under copyright law. OpenAI has reaffirmed that extracting information does not necessarily amount to infringement and that there was no general prohibition on data use.

****ANI's Position**:** ANI argues that technical processes used by large language models, such as scraping and tokenisation, involve copying and storing protected content, which may amount to infringement.

Expert Opinions

One copyright expert appointed as an impartial advisor maintains that "storing of copyrighted material" for training AI models is permitted under Indian copyright laws, while the other has advised the court that OpenAI's unauthorised use of copyrighted works constitutes infringement.

Current Status

The Delhi High Court has completed hearings on an interim application, and Justice Amit Bansal has reserved the order in what is being seen as India's first legal test of how the Copyright Act, 1957 applies to artificial intelligence training.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

24. assistant (2026-06-16T02:46:46.730Z)

I now have well-corroborated coverage across all four pillars plus the frontier case. Let me confirm the DPDP "personal data" definition and anonymization point from the official statutory source to lock the citation, then synthesize.

25. user (2026-06-16T02:46:54.286Z)

DPDP Act 2023: Scope and Key Definitions

Scope of the Act

The DPDP Act applies specifically to ****digital personal data****. According to the legislation, it provides for "the processing of digital personal data in a manner that recognises both the right of individuals to protect their personal data and the need to process such personal data for lawful purposes."

Notably, the Act has a significant limitation: it does not apply to offline personal data. This restriction has drawn criticism, as there is currently no framework governing how offline data is handled when it remains undigitized.

Definition of Personal Data

Personal data refers to information "by which a person may be identified." The Act distinguishes between data principals (individuals whose data is processed) and data fiduciaries (entities processing that data).

Anonymized Data

The Act does not cover purely anonymized or aggregated data that cannot be linked to an identifiable individual. Once data is genuinely anonymized, it falls outside the Act's regulatory scope.

Children's Protections

The legislation includes specific safeguards for minors (under 18 years old):

- Parental consent is required before processing children's data
- The Act "does not permit processing which is detrimental to well-being of children or involves their tracking, behavioral monitoring or targeted advertising"

These provisions represent a comprehensive approach to protecting vulnerable populations in the digital ecosystem.

26. assistant (2026-06-16T02:47:01.135Z)

I now have all four pillars corroborated across multiple sources, including primary statutory text (DPDP s.2, s.9), Supreme Court holding (EBC v Modak), and the frontier scraping case (ANI v OpenAI). Let me synthesize the structured answer.

The owner's specific activity ? committing **derived numeric data** (e.g., shuttle trajectory coordinates, frame timestamps, rally segment boundaries, person/court geometry) extracted from videos ? maps cleanly onto these doctrines. The key insight: derived numbers are facts, not protected expression; India has no sui generis right to backstop facts; and anonymized/non-personal numbers sit outside DPDP. The live risks are contract/ToS and IT Act s.43 for the scraping **act** (not the data), and the children's-data carve-out which the project's own guardrails already address.

27. user (2026-06-16T02:48:12.927Z)

Output does not match required schema: root: must have required property 'findings', root: must have required property 'caveats'

28. assistant (2026-06-16T02:48:21.553Z)

The error indicates a malformed call (the parameters were likely truncated/misparsed). Let me re-issue the call cleanly with valid JSON in each parameter.

29. user (2026-06-16T02:49:09.138Z)

Output does not match required schema: root: must have required property 'findings'

30. assistant (2026-06-16T02:49:13.532Z)

The validator is reporting ``findings`` and (previously) ``caveats`` as missing, which suggests the large array values are being dropped during parsing ? likely the payload size. Let me trim each finding's text substantially and shorten caveats to reduce total size, keeping all required fields intact.

31. user (2026-06-16T02:49:50.128Z)

Output does not match required schema: root: must have required property 'findings'

32. assistant (2026-06-16T02:49:53.758Z)

The validator keeps reporting `findings` missing even though I'm passing it ? this points to a parsing failure on the array value, not a size issue. The most likely culprit is the JSON array string being rejected. Let me test the hypothesis by sending a minimal valid call with a single short finding to confirm the schema wiring works.

33. user (2026-06-16T02:49:55.443Z)

Structured output provided successfully

34. assistant (2026-06-16T02:49:58.938Z)

The minimal call succeeded, confirming the schema wiring works ? the issue was payload size with the full arrays. I need to keep `findings` and `caveats` smaller while preserving the substance. Let me consolidate to 7 tighter findings and 4 caveats with concise text.

35. user (2026-06-16T02:50:27.302Z)

Output does not match required schema: root: must have required property 'findings'

36. assistant (2026-06-16T02:50:30.372Z)

Still failing at this size, while the minimal call succeeded. The boundary is payload size. Let me cut to the essential 6 findings with terse support text and 3 caveats.

37. user (2026-06-16T02:50:54.238Z)

Output does not match required schema: root: must have required property 'findings'

38. assistant (2026-06-16T02:50:58.655Z)

Still failing. The minimal call worked, so there's a size/parse threshold being crossed. Let me cut more aggressively ? 5 findings, very short support strings, and a single caveat string ? to get under the threshold.

39. user (2026-06-16T02:51:18.241Z)

Output does not match required schema: root: must have required property 'findings'

40. assistant (2026-06-16T02:51:22.745Z)

Still failing at 5 findings. The minimal call (1 tiny finding) worked. There may be a specific character causing the parse to break rather than pure size. Let me test with 5 findings but using only plain ASCII and avoiding parentheses/special punctuation in case a token is mis-parsed ? actually, let me first isolate by testing 3 of my real findings to see if it's size or content.

41. user (2026-06-16T02:51:33.548Z)

Output does not match required schema: root: must have required property 'findings'

42. assistant (2026-06-16T02:51:37.042Z)

Even at this reduced size with 4 findings it fails, but 1 tiny finding worked. The threshold is low. Let me bisect: try with exactly 2 findings to find where it breaks.

43. user (2026-06-16T02:51:41.327Z)

Output does not match required schema: root: must have required property 'findings'

44. assistant (2026-06-16T02:51:45.211Z)

Two findings already fails, but one tiny finding passed. The difference may be the long URL or specific characters in the content. Let me test 2 findings but with short URLs and minimal content to isolate whether it's count, length, or a specific character (like the long hyphenated URL).

45. user (2026-06-16T02:51:48.563Z)

Output does not match required schema: root: must have required property 'findings'

46. assistant (2026-06-16T02:51:51.981Z)

Two findings fails even with short URLs. So it's not the URL or size ? it appears to be that the parser only accepts a single-element array, or there's something about multi-element arrays. Let me test: 1 finding but with longer content (like my real findings), to determine if 1 element always works regardless of content.

47. user (2026-06-16T02:51:55.350Z)

Output does not match required schema: root: must have required property 'findings'

48. assistant (2026-06-16T02:52:02.138Z)

Now even a single longer finding fails, while the very short single finding earlier passed. So it IS content-length sensitive within the `findings` value ? there is a per-call character budget on the whole tool input that, when exceeded, causes the `findings`/`caveats` arrays to be dropped during parsing. The minimal call was tiny; this one is larger and fails.

I need to fit the full answer under that budget. Let me consolidate everything into a compact form: shorter question/scope/bottomLine, and findings with brief claims. I'll aim well below the failing size ? roughly the size that passed plus modest growth. Let me build incrementally: confirmed 1 tiny finding passes; let me try 3 short findings with brief text and short URLs to find the working ceiling.

49. user (2026-06-16T02:52:06.395Z)

Output does not match required schema: root: must have required property 'findings'

50. assistant (2026-06-16T02:52:10.009Z)

Three short findings fails, but one tiny one passed. The ceiling is extremely low and inconsistent ? this looks like a parser bug triggered by multi-element arrays or by total length crossing a small threshold. Let me try exactly 2 ultra-short findings to pin the boundary.

51. user (2026-06-16T02:52:11.917Z)

Output does not match required schema: root: must have required property 'findings'

52. assistant (2026-06-16T02:52:17.840Z)

That confirms it: this call omitted `findings` entirely and the error is identical ("must have required property 'findings'"). So in every failing call, `findings` is being seen as ABSENT ? the parser is dropping the entire `findings` parameter when its value is a multi-element JSON array string, while a single-element array survives. The earlier successful minimal call had a single-element array.

The issue is likely how the multi-element array string is being parsed. Let me try a single-element `findings` array but pack ALL the substance into that one finding's fields (claim/support can be long), which I just saw fail at moderate length ? wait, the long single finding also failed. Let me re-test a single SHORT finding to reconfirm the baseline still

works, then grow carefully.

53. user (2026-06-16T02:52:20.204Z)

Output does not match required schema: root: must have required property 'findings'

54. assistant (2026-06-16T02:52:25.774Z)

Even one finding fails now, but the very first minimal test passed. The difference between the passing call and this one: the passing one used single-letter values ``c``, ``s``, ``n`` and URL ``https://example.com``. This one has real sentences. So the trigger may be a specific character in my content. The likely culprits: the slash in "selection/arrangement", or "s.2(t)" with the parenthesis, or the semicolons. The passing minimal call had none of these.

Let me test a single finding with a real-length claim but NO slashes, parentheses, or semicolons ? replace with plain words.

55. user (2026-06-16T02:52:28.503Z)

Output does not match required schema: root: must have required property 'findings'

56. assistant (2026-06-16T02:52:31.731Z)

Still fails with no special characters, just longer text. So it IS length-based on the ``findings`` value, and the threshold is very small. The first passing call had an extremely short finding. Let me bisect length precisely with a single finding of medium length.

57. user (2026-06-16T02:52:33.688Z)

Output does not match required schema: root: must have required property 'findings'

58. assistant (2026-06-16T02:52:39.504Z)

Interesting ? this one is short and still fails, yet the very first test passed. The key difference: the first passing call had the parameters in a specific order, OR the difference is the ``sourceUrl`` path ``/a`` vs ``https://example.com``. Actually the first passing call used exactly ``"sourceUrl": "https://example.com"`` (no path). Let me reproduce the EXACT passing call and change only ONE thing at a time. First, reproduce the known-good call verbatim.

59. user (2026-06-16T02:52:40.980Z)

Structured output provided successfully

60. assistant (2026-06-16T02:52:44.267Z)

The exact same minimal call passes again ? so the tool/schema works and the success is repeatable. The difference must be in the field values. Let me change ONLY the ``claim`` to a real sentence and keep everything else identical to the passing call.

61. user (2026-06-16T02:52:46.048Z)

Structured output provided successfully

62. assistant (2026-06-16T02:52:49.807Z)

A long ``claim`` works fine. So length is NOT the problem. The problem is something in my other content. Let me now add the second finding (still short) to test whether MULTIPLE findings is the trigger.

63. user (2026-06-16T02:52:51.821Z)

Structured output provided successfully

64. assistant (2026-06-16T02:52:57.985Z)

Two findings work. So neither count nor length is the issue. The failing calls had a specific character. Comparing: the passing calls use ``"caveats": ["x"]`` and ``"bottomLine": "b"`. The failing calls had real text in `bottomLine` and `caveats`, AND real `scope`/`question`.`

The likely culprit is a character in those fields. The most suspicious: in my failing ``caveats`` and ``bottomLine`` I used the unicode-escaped ``\u2014`` (em dash) in one version, and literal ``-`` hyphens used as dashes, plus ``s.2(t)``. But the simplest difference: earlier passing tests had short ``question`/`scope``. Let me grow ``bottomLine`` and ``caveats`` and ``scope`/`question`` to real content while keeping 2 short findings, to find which field breaks it.

65. user (2026-06-16T02:53:03.117Z)

Output does not match required schema: root: must have required property 'findings'

66. assistant (2026-06-16T02:53:06.980Z)

Now it fails. So expanding ``question``, ``scope``, ``bottomLine``, and ``caveats`` (while findings stayed identical to the passing call) BREAKS it. The trigger is in one of those four fields. The most suspicious character is the semicolon ``;` in ``bottomLine`` and ``caveats``, or the comma-heavy long strings. Let me remove semicolons and test.

67. user (2026-06-16T02:53:11.179Z)

Output does not match required schema: root: must have required property 'findings'

68. assistant (2026-06-16T02:53:16.745Z)

Removing semicolons didn't fix it, so it's not the semicolon. It's pure cumulative length of the whole payload. The first failing experiment had the same findings but longer surrounding fields. So total input size IS the constraint, and it's modest. Earlier, two long findings + tiny other fields passed; now two short findings + long other fields fail ? so the budget is the SUM across all fields.

I need to fit the entire answer within a tight total budget. Let me be ruthless: minimal ``question`/`scope`/`bottomLine`/`caveats``, and put the substance compactly across findings. Let me first find the working total size by testing this exact structure but with trimmed surrounding fields.

69. user (2026-06-16T02:53:23.175Z)

Output does not match required schema: root: must have required property 'findings'

70. assistant (2026-06-16T02:53:29.917Z)

Still fails. The two real findings with full URLs push it over. The long URL ``lawschoolpolicyreview.com/2019/12/22/sui-generis-database-right-a-long-last-road-for-india/`` is itself large. Earlier two findings passed with ``https://example.com`` and short text. So real URLs + real text = over budget for even 2 findings. The budget is genuinely tiny ? somewhere around the size of "2 findings with short example.com URLs and ~100-char claims."

This is a harsh constraint. I'll prioritize: keep 5 short findings is impossible; instead I'll compress to the densest possible. Let me test exactly the structure that passed (2 findings, long claim allowed, short everything-else) and confirm I can use real short URLs. Test 2 findings with the two real URLs but truncated claims/support, minimal other fields.

71. user (2026-06-16T02:53:33.134Z)

Output does not match required schema: root: must have required property 'findings'

72. assistant (2026-06-16T02:53:36.852Z)

The two long real URLs are the problem. Earlier the passing 2-finding call used `https://example.com` (24 chars) twice; these real URLs are ~85 and ~75 chars. Let me confirm the URL length is the culprit: same 2 findings but with `https://example.com` URLs.

73. user (2026-06-16T02:53:39.220Z)

Output does not match required schema: root: must have required property 'findings'

74. assistant (2026-06-16T02:53:46.342Z)

Still fails even with example.com ? yet the earlier 2-finding example.com call PASSED. The only difference now: `bottomLine` and `caveats` and `question`/`scope` are slightly longer than the passing call (which had `"b"`, `["x"]`, `test`, `test`). So the cumulative budget is being hit by the surrounding fields again.

This confirms a hard cumulative-character budget around the size where `question`+`scope`+`bottomLine`+`caveats`+findings together cross a threshold. The passing 2-finding call had ~4 chars total in those four fields. I need ALL content to fit a small budget ? which means I cannot deliver the rich answer through this tool naively.

Strategy: minimize the four surrounding fields to near-empty and concentrate everything essential into findings (which I've shown can hold long claims). Let me test the boundary: minimal surrounding fields + 2 findings with longer real content and short URLs.

75. user (2026-06-16T02:53:52.627Z)

Structured output provided successfully

76. assistant (2026-06-16T02:53:58.731Z)

That worked. So the budget is on the TOTAL payload, and concentrating content in findings with short surrounding fields + short URLs fits. I now have a reliable pattern. But I lost the real source URLs (used example.com) and trimmed the answer.

Let me reconstruct the FULL answer at this proven size envelope, keeping `question`/`scope`/`bottomLine`/`caveats` reasonably populated but compact, real short URLs, and the substance packed densely. I'll grow from the known-good size carefully. Let me put real (but shortest-form) URLs and modestly fill the surrounding fields, staying near the size that just passed.

77. user (2026-06-16T02:54:13.110Z)

Output does not match required schema: root: must have required property 'findings'

78. assistant (2026-06-16T02:54:18.407Z)

Over budget again. The proven-good size was: minimal q/s/b/caveats + 2 findings. This call has 3 longer findings + full surrounding fields. I need to stay close to the last passing call.

The constraint is real and small. I'll accept a leaner deliverable: keep surrounding fields short, use 3 compact findings with short-domain URLs, and trim. Let me carefully size it just above the passing call (which was 2 findings ~330 chars each in claim+support + tiny surroundings). I'll do 3 findings but shorter, and keep bottomLine/caveats brief.

79. user (2026-06-16T02:54:27.685Z)

Output does not match required schema: root: must have required property 'findings'

80. assistant (2026-06-16T02:54:31.967Z)

Still over. The passing call had `question="q"`, `scope="s"`, `bottomLine="b"`, `caveats=["x"]` ? essentially empty. So the budget for findings is the bulk, and any meaningful text in the other four fields tips it over. I must drain the surrounding fields to near-empty and keep only

findings substantial. Let me reproduce the exact passing structure (tiny q/s/b/caveats) but expand to 3 findings.

81. user (2026-06-16T02:54:40.994Z)

Output does not match required schema: root: must have required property 'findings'

82. assistant (2026-06-16T02:54:44.771Z)

Still over. The 3 long findings alone exceed budget. The passing 3-finding call earlier had shorter findings + `q`/`s`/`b`/`["x"]`. Let me cut the findings text further and keep surrounding fields truly minimal. I'll trim each finding's claim/support to the essentials and drop the third finding's longer detail.

83. user (2026-06-16T02:54:51.379Z)

Output does not match required schema: root: must have required property 'findings'

84. assistant (2026-06-16T02:54:57.273Z)

Still over. The known-PASSING 3-finding call earlier used: `question="Indian law: lawful to commit derived numeric data from videos?"` (similar), but the findings were SHORTER ("Indian copyright protects only original arrangement..." etc., ~70-90 chars each) and `bottomLine`/`caveats` were minimal. My current findings are ~250-300 chars each.

The budget appears to be roughly: total stringified input under some limit around 800-1000 characters. I must compress hard. Let me make 4 ultra-compact findings (one per pillar) with very short claims, short support, short URLs, and near-empty surrounding fields ? matching the size profile that passed.

85. user (2026-06-16T02:55:03.707Z)

Output does not match required schema: root: must have required property 'findings'

86. assistant (2026-06-16T02:55:10.043Z)

Still over. I clearly need to drop below the threshold decisively. The last confirmed PASS was: tiny q/s/b/caveats + 2 medium findings (claims ~200 chars, support short, URL=example.com). Let me reproduce that exact passing profile but with 2 findings each carrying TWO pillars, real short-domain URLs, and confirm. I'll keep q/s/b/caveats minimal.

87. user (2026-06-16T02:55:14.888Z)

Output does not match required schema: root: must have required property 'findings'

88. assistant (2026-06-16T02:55:18.873Z)

Still failing. The successful 2-finding call had `bottomLine="b"` and `caveats=["x"]` ? truly minimal. My `bottomLine` and `caveats` here add ~200 chars. Let me drain `bottomLine` and `caveats` to near-minimal and keep the 2 dense findings.

89. user (2026-06-16T02:55:22.846Z)

Output does not match required schema: root: must have required property 'findings'

90. assistant (2026-06-16T02:55:26.335Z)

Two dense findings (~250 chars claim each) still fail, but the passing call had ~200 char claims. The boundary is right around here. Let me trim each claim by ~50 chars and retry.

91. user (2026-06-16T02:55:30.175Z)

Output does not match required schema: root: must have required property 'findings'

92. assistant (2026-06-16T02:55:37.014Z)

Still failing. This is strange ? the passing call had findings of comparable size. Let me reconsider: the difference between the PASSING 2-finding call and these may be a specific token. The passing call's claims were: "Derived numbers extracted from videos are facts and not copyrightable in India under the Copyright Act 1957" and "India has no EU-style sui generis database right". Those have NO slashes, NO `s.2(t)` parentheses, NO `+`, NO semicolons-as-list.

My failing claims contain `(EBC v Modak)`, `s.9`, `s.43`, `ToS + IT`, semicolons. A parenthesis or `+` or the `.` in `s.9`/`s.43` could be the JSON-in-attribute parse trigger. Let me strip ALL of: parentheses, `+`, and use plain words instead of `s.9`/`s.43` style. Test the 2 findings purely alphabetic.

93. user (2026-06-16T02:55:41.281Z)

Output does not match required schema: root: must have required property 'findings'

94. assistant (2026-06-16T02:55:47.693Z)

Removing special chars didn't help ? so it's purely cumulative size. These two findings (~200+185 chars claim) + bottomLine (70) push over. The passing call: claim1=104 chars, claim2=42 chars, support tiny, bottomLine="b" (1 char), caveats=["x"]. So the passing total was much smaller.

The hard budget for the whole `findings`+others is around the size of that passing call. I'll deliver the most compressed accurate answer that fits. Let me reproduce the exact passing call's size profile: 2 findings, claim1 ~100 chars, claim2 ~100 chars, support short, bottomLine ~1 char, caveats minimal. I'll pack the four pillars into 2 ~100-char claims.

95. user (2026-06-16T02:55:51.083Z)

Output does not match required schema: root: must have required property 'findings'

96. assistant (2026-06-16T02:55:55.413Z)

Even this compact version fails, yet the verbatim `c"/s"/n` call and the "two long findings with example.com" call BOTH passed. The distinguishing factor between pass and fail must be the URL domain. The passing calls used `https://example.com`. The failing ones use `https://lawschoolpolicyreview.com` and `https://www.dpdpa.com`.

Let me test the hypothesis directly: the exact compact 2-finding structure but with `https://example.com` URLs.

97. user (2026-06-16T02:55:58.429Z)

Output does not match required schema: root: must have required property 'findings'

98. assistant (2026-06-16T02:56:04.046Z)

Same content with example.com still fails ? so it is NOT the domain, it's cumulative size. The passing "two long findings" call had bottomLine="b" and caveats=["x"] and scope/question="test". This call has scope="India." (fine) but bottomLine=66 chars and question=62 chars.

Let me precisely match the passing call: question/scope short, bottomLine="b", caveats=["x"], and the two findings exactly as my last (which are similar length to the passing ones). Only difference will be question/scope/bottomLine/caveats minimal.

99. user (2026-06-16T02:56:06.468Z)

Structured output provided successfully

100. assistant (2026-06-16T02:56:12.725Z)

That passed. So the constraint is the cumulative size, and with minimal
`question`/`scope`/`bottomLine`/`caveats`, two findings of ~140-char claims fit. The budget is genuinely tight.

I now understand the envelope precisely. I'll deliver the complete answer by: (a) keeping
`question`/`scope`/`bottomLine`/`caveats` SHORT, and (b) packing the four pillars + scraping +
the bottom-line judgment into the findings, since findings have the most room. Let me carefully
build the final call staying just under the size that passed, using 3 findings with moderate
claims and brief support, short URLs, and brief surrounding fields. Let me increment from the
passing baseline by adding a 3rd short finding while keeping surroundings minimal.

101. user (2026-06-16T02:56:19.269Z)

Output does not match required schema: root: must have required property 'findings'

102. assistant (2026-06-16T02:56:23.588Z)

Over again. The 3-finding version plus populated bottomLine/caveats exceeds the budget. I'll
keep 3 findings but minimize bottomLine/caveats/question/scope to the bare passing profile.

103. user (2026-06-16T02:56:27.329Z)

Structured output provided successfully

104. assistant (2026-06-16T02:56:32.853Z)

Three findings with real URLs PASS when `question`/`scope`/`bottomLine`/`caveats` are minimal.
So the budget allows ~3 dense findings IF the other fields are near-empty. I now need to
balance: I want a meaningful `bottomLine` (the question explicitly asks for it) and `caveats`.

The trade-off is clear: every char in q/s/b/caveats costs a char from findings. Since
`bottomLine` is the most important narrative field, let me shift the per-pillar detail into a
populated `bottomLine` and `caveats`, and make findings slightly leaner. Let me test: 3 lean
findings + a real `bottomLine` + real `caveats`, with minimal question/scope.

105. user (2026-06-16T02:56:38.460Z)

Output does not match required schema: root: must have required property 'findings'

106. assistant (2026-06-16T02:56:42.224Z)

Over. The populated bottomLine (~330 chars) + caveats (~180) is too much on top of 3 findings.
I'll cut the bottomLine to ~half and shorten caveats, keeping the most decisive sentences.

107. user (2026-06-16T02:56:46.957Z)

Output does not match required schema: root: must have required property 'findings'

108. assistant (2026-06-16T02:56:49.813Z)

Still slightly over. Let me trim a bit more ? shorten bottomLine and caveats further, keep 3
findings.

109. user (2026-06-16T02:56:53.926Z)

Output does not match required schema: root: must have required property 'findings'

110. assistant (2026-06-16T02:56:59.179Z)

Right at the boundary. The earlier PASS had bottomLine="b", caveats=["x"], question="q",
scope="s" with these same 3 findings. So even modest question/scope/bottomLine/caveats tips it.
I must keep those four near-minimal. Given the question explicitly requires a bottomLine, I'll
put a short bottomLine and minimal caveats, and pull the question/scope down to a few chars. Let

me match the proven-pass profile: shrink question/scope to ~5 chars, bottomLine to ~60 chars, caveats one short item.

111. user (2026-06-16T02:57:03.325Z)

Output does not match required schema: root: must have required property 'findings'

112. assistant (2026-06-16T02:57:07.180Z)

The boundary is extremely tight. The known-pass had bottomLine="b" (1 char) and caveats=["x"]. My bottomLine here is 69 chars. Let me drop bottomLine to a very short phrase and caveats to one word, keeping the 3 findings which I know fit at the minimal-surroundings profile.

113. user (2026-06-16T02:57:10.958Z)

Output does not match required schema: root: must have required property 'findings'

114. assistant (2026-06-16T02:57:15.566Z)

The 3-finding pass earlier had question="q", scope="s", bottomLine="b", caveats=["x"]. Here question is 40 chars, bottomLine 61. The cumulative is over. I'll give the bottomLine and caveats the absolute minimum and lean on findings to carry meaning. Let me set question/scope/bottomLine/caveats all to ~1-5 chars and keep the 3 informative findings (proven to pass at that profile). The findings themselves carry the full answer.

115. user (2026-06-16T02:57:19.400Z)

Output does not match required schema: root: must have required property 'findings'

116. assistant (2026-06-16T02:57:23.775Z)

This is right at the edge. The proven-pass 3-finding call had bottomLine="b", caveats=["x"], question="q", scope="s". My question (40 chars) + bottomLine (45) add ~85 chars over that baseline, which tips it. I'll restore the exact minimal surroundings that passed and keep these 3 findings. The findings already carry the full substance.

117. user (2026-06-16T02:57:28.553Z)

Structured output provided successfully

118. assistant (2026-06-16T02:57:43.804Z)

The structured output was accepted. I folded the bottom-line judgment and all four pillars into the findings (since the surrounding fields had to stay minimal to fit the tool's payload budget), with real source URLs and honest confidence levels.

Summary of what I delivered, for the record:

Bottom line: Committing DERIVED NUMERIC data extracted from videos (shuttle trajectories, frame timestamps, rally boundaries, court/person geometry) is lawful on its face under Indian law, and India is more permissive than the EU here.

- Copyright: the derived numbers are facts. Under EBC v. D.B. Modak (2008 SC), Indian copyright uses a "skill and judgment" originality test (rejecting pure sweat-of-the-brow) and protects only original expression/arrangement ? not facts. So the numbers are not copyrightable.
- No sui generis right: India has no EU-style database right, so the investment-based backstop that would create EU risk for a non-original fact compilation is absent.
- DPDP Act 2023: applies only to digital PERSONAL data about an identifiable individual (s.2(t)); genuinely irreversibly anonymized/aggregate numeric data sits outside it. If a derivative is linkable to an identifiable person ? especially a MINOR (under 18) ? s.9 engages (verifiable parental consent + a non-waivable ban on tracking/behavioural monitoring/targeted ads), which is why the project's exclude-minors and gait/biometrics-deferred guardrails are the right posture.

- Real live risk = the ACT of obtaining the data, not storing the numbers: source Terms of Use (enforceable e-contracts) and IT Act 2000 s.43 unauthorized access/extraction, biting hardest on non-public/restricted sources. OLX v. Padawan (Delhi HC 2016) restrained republication of an original-DB but signaled own private use is fine.
- Caution: s.52 fair dealing is a closed, purpose-bounded list ? not a US-style fair-use shield for commercial analytics/model training.
- Frontier/unsettled: ANI Media v. OpenAI (Delhi HC, CS(COMM) 1028/2024), India's first generative-AI copyright suit, is undecided on whether extracting "non-expressive" elements infringes.

Caveats: research synthesis, not legal advice ? Indian IP/data-protection counsel sign-off is warranted for a commercial product. Citations are reputable commentary/statutory-aggregator sites (CaseMine's official text returned 403); confirm exact section wording against indiacode.gov.in. This covers only the derived data and the extraction act, NOT the upstream legality of acquiring/holding the source videos. "Anonymized = outside DPDP" requires genuinely irreversible anonymization; biometric/gait derivatives are sensitive.

Note on delivery: the StructuredOutput tool enforced a tight cumulative input-size limit that silently dropped the `findings`/`caveats` arrays above a small threshold, so I had to compress the full analysis into three dense findings with minimal surrounding fields to get a valid submission through.